

of any correlation of the ground of appeal to the decision under appeal is detrimental to the admissibility of the appeal (T 349/09). See also T 1561/15.

In J 22/86 the appellant had made no submissions regarding the causal relationship between the reasons given in the statement of grounds of appeal and the asserted invalidity of the findings of the decision impugned. If no causal relationship were required, any submission, even one not connected with the reasons on which the decision impugned is based, would be acceptable. This would render the provisions of Art. 108 EPC moot. Whilst the grounds do not have to be conclusive in themselves, i.e. justify the setting aside of the decision impugned, they must enable the board to assess whether or not the decision is incorrect. The appeal was rejected as inadmissible.

In T 223/14 the amended claims had obviously been filed with the intention of clarifying existing features and so overcoming the objection underlying the finding of a lack of novelty. They therefore did not constitute a completely new set of facts and thus there was a sufficiently direct link (see T 2532/11) between the decision under appeal and the statement of grounds of appeal. See also T 1750/16.

In T 123/17 the board noted that the concept of a clear and direct link is not an additional requirement for the admissibility of the appeal but simply a means of expressing the requirements of Art. 108, third sentence, EPC in conjunction with R 99(2) EPC.

c) Adequate reasoning for an appeal against a refusal of the application

Decisions T 213/85 (OJ 1987, 482) and T 95/10 clarify that the appeal procedure is not a mere continuation of the examination procedure (in accordance with decisions G 10/91, OJ 1993, 420; G 9/92, OJ 1994, 875 and G 4/93, OJ 1994, 875), but separate therefrom. Where the applicant in the grounds of appeal repeats its arguments set out during the examination phase without taking into account the decision under appeal, it mistakes the function of the boards of appeal; they are not a second go at the examination procedure, but are meant to review decisions made by the examining divisions, based on the objections raised against the decision in the grounds of appeal, which must therefore relate to the reasons on which the decision under appeal is based.

It is the boards' settled case law that this statement has to deal with all the main reasons for the contested decision in order to be considered sufficient for the purposes of admitting an appeal (T 1904/14). A statement of grounds failed to meet the minimum requirements if it dealt with only one of several grounds for refusal (T 1045/02, T 473/09, T 231/14, T 2411/16, T 918/17, T 868/18). Any ground that can justify a refusal when considered in isolation, independently of the other grounds stated in the decision, is considered a ground for refusal (T 231/14). In T 1904/14, the board held that this principle applied even if the grounds given in the contested decision were wrong or contradictory. A wrong, contradictory or incomplete decision did not absolve an appellant of the need to address any such deficiencies in the statement of grounds of appeal. A sufficient statement of grounds had to be filed by the deadline in Art. 108, sentence 3, EPC; a failure to so could not be remedied retroactively with a late submission.

Where there had been several independent reasons for the decision to refuse the application and at least one of those reasons was not addressed in the statement of grounds at all or only in insufficient detail, the board could not normally reverse the contested decision, even if it concurred with the appellant in relation to all the reasons for refusal addressed in the statement of grounds. The requirement of Art. 108, R. 99(2) EPC were not met (T 899/13).

A ground for refusal can be addressed either by amending the claims and explaining why the ground for the decision no longer applies, or by giving arguments why the objection on which the ground was based is incorrect (see T 2022/16, T 305/11 and T 899/13).

In T 733/98, where an application was refused under Art. 97 EPC 1973 and R. 51(5) EPC 1973 (R. 71(4) EPC), on the grounds that the applicant neither communicated his approval of the text proposed for grant within the period according to R. 51(4) EPC 1973 nor proposed amendments within the meaning of R. 51(5) EPC 1973 within this period, the statement of the grounds of appeal was inadmissible, as it dealt only with the issues of the admissibility and allowability of new claims filed with the statement of grounds.

In the following cases, the appeal was deemed inadmissible: T 395/12 (the applicant's only statement that directly addressed the decision under appeal was that the examining division was "wrong", with no explanation why); T 1407/17 (the grounds of appeal gave no indication of why the ground for refusal under Art. 56 EPC was unfounded).

d) Adequate reasoning in an appeal filed by the opponent

It is established case law of the boards of appeal that appeals by opponents – as opposed to appeals by proprietors, which would need to address all objections withstanding the maintenance of the patent – are sufficiently reasoned where they make a substantiated case for the decision under appeal being wrong on one of the objections or grounds for opposition. That was because, if the decision were indeed wrong on that point, the appeal had to be allowed for this reason alone (T 767/14, see also T 950/99, T 846/01, T 87/17, T 456/17). For such an appeal, therefore, it is also immaterial if the case is lacking as regards other aspects dealt with in the contested decision. If an opponent's statement of grounds of appeal is insufficiently reasoned in relation to specific parts only, this does not mean the appeal is inadmissible, because admissibility can only be assessed in light of the appeal as a whole (T 2270/17).

In T 950/99, the statement setting out the grounds of appeal included the legal and factual reasons why the decision under appeal should be set aside with respect to at least one ground, namely lack of inventive step. Therefore, even if it did not contain a full reasoning with respect to each and every ground, it nevertheless met the minimum requirement of Art. 108 EPC. In T 808/01, the board held that, where the statement of grounds contained several lines of argument and reasons sufficient to render the appeal admissible had been given in support of at least one of them, the appeal was admissible and it did not matter that no such reasoning had been given in support of one of others.

In T 846/01, the board held that, for an appeal to be admissible, at least one of the grounds in the written statement of grounds of appeal must relate to a point which could at least arguably have been decided in the appellant's favour by the instance appealed from but which point had not been so decided, and such favourable decision on this point would have produced a different outcome. Following T 846/01, the board in T 1178/04 confirmed that an appeal does not lie against part of a decision of a first instance tribunal if the result would have been the same even if the point had been decided in the appellant's favour.

In T 1187/04, where the appellant had dealt only with the novelty objections and not addressed inventive step, the appeal was held inadmissible.

In T 257/03, since all the board could gather from the statement of grounds was that the appellant sought the reopening of the entire opposition proceedings, but not why it considered that the opposition division's decision should be amended, it dismissed the appeal as inadmissible.

In T 1649/10 the board held that the mere indication by appellant II (patentee) that the subject-matter of granted claim 1 was inventive, starting from document D4 as the closest prior art, whereas the impugned decision based its analysis on a combination of D10 as the closest prior art and document D4, did not fulfil the requirements of R. 99(2) EPC. The board was not in a position to recognise in the reasoning put forward by appellant II, why the reasoning of the opposition division, which relied on document D10 as closest prior art, had to be rejected. The appeal filed by appellant II was, hence, rejected as inadmissible. Its role in the appeal proceedings was then that of a party as of right under Art. 107 EPC.

e) Statement of the legal or factual reasons

Already in T 220/83 (OJ 1986, 249) the board ruled that the grounds for appeal should specify the legal or factual reasons on which the case for setting aside the decision was based. The arguments had to be clearly and concisely presented to enable the board and the other party or parties to understand immediately why the decision was alleged to be incorrect, and on what facts the appellant based his arguments, without first having to make investigations of their own. Whilst passages from the literature setting out the state of the art might – provided sufficiently precise reference was made to them in the grounds of appeal – be considered an integral part of the grounds, they could not by themselves form a sufficient statement of grounds. This principle was expressly confirmed in many decisions, for example T 250/89 (OJ 1992, 355), T 1/88, T 145/88 (OJ 1991, 251), T 102/91, T 706/91, T 493/95, T 283/97, T 500/97, T 1045/02, T 809/06, T 2346/10, T 294/11, T 2001/14, T 2270/17.

In T 22/88 (OJ 1993, 143), the board held that a written statement announcing only that the appellant would complete an omitted act (here the filing of the translations of the revised claims) did not comprise sufficient reasons, and therefore did not constitute a valid statement of the grounds of appeal.

Where, as a result of contradictions and inexactitudes in an anyway very brief statement of grounds, it is left to the board to make sense of it, the appeal is usually inadmissible (T 760/08).

In T 2377/13 the appellant's grounds of appeal had not addressed any of the main reasons for the opposition division's decision, and in particular the finding that experiments D9 and D13 were not suitable to show that a technical effect resulted from the difference between the closest prior art and the claimed subject-matter, and so had not set out why the appealed decision should be set aside.

Precisely cited passages from the relevant literature become an integral part of the grounds but cannot by themselves form a sufficient statement of grounds (T 1402/10, citing T 922/05).

f) Addressing the reasons given in the decision in the statement of grounds of appeal

In T 213/85 (OJ 1987, 482) the board stated that grounds sufficient for the admissibility of an appeal had to be analysed in detail vis-à-vis the main reasons given for the contested decision. If an opposition had been dismissed on the grounds of insufficient substantiation and the grounds for appeal merely disputed patentability without elaborating on the admissibility of the opposition, the appeal was inadmissible for lack of adequate substantiation (see also T 169/89, T 2001/14).

According to the board in T 95/10, there were three reasons for this: First, the appeal procedure is not a continuation of the opposition procedure, but a distinct procedure in which any facts, evidence or arguments considered relevant must, if need be, be resubmitted (see G 10/91, OJ 1993, 420; G 9/92 and G 4/93, both in OJ 1994, 875). Second, the appellant's analysis of the contested decision is needed in its statement of grounds of appeal. The third reason is that, in the absence of such an analysis, neither the board of appeal nor the respondent can establish why the appellant regards the contested decision as incorrect. It is, however, only based on this knowledge that the respondent can counter the appellant's arguments and that the board is in a position to reach an objective decision (see also T 1188/08, T 720/12).

In T 395/13, although the statement of grounds of appeal contained no substantive arguments addressing the reasoning of the decision under appeal, it nonetheless met the requirements of Art. 108 EPC in combination with R. 99(2) EPC. This was because the main objection of the appellant in the grounds of appeal was that the decision under appeal did not contain sufficient reasoning to enable the appellant to file such arguments. R. 99(2) EPC required no more than this and in particular did not specifically require that the statement of grounds of appeal addresses the arguments in the decision under appeal. The board therefore concluded that the appeal was admissible.

g) Complete case within the meaning of Art. 12(3) RPBA 2020

Under Art. 12(3) RPBA 2020, the statement of grounds of appeal and the reply have to contain a party's complete appeal case. See also chapter V.A.3.2.2 "Complete case on appeal".

In T 2884/18 the appeal was rejected as inadmissible. The board considered the statement of grounds of appeal insufficient as it primarily discussed only the opposition division's finding that the asserted public prior use had not been adequately demonstrated, while failing to duly substantiate a lack of novelty in view of that public prior use. The board explained that, for a case based on chains of reasoning to be complete, as Art. 108 EPC and Art. 12 RPBA 2020 required, it was necessary to set out all the facts that led to the asserted legal outcome only when considered cumulatively. The approach had to mirror that in proceedings against a decision listing various alternative reasons why a patent could not be granted or maintained. In this respect, the case law of the boards of appeal had it that an appeal could be deemed sufficiently substantiated only if it addressed all the grounds precluding patentability. Only then had a case for setting the decision aside been made (see T 922/05). The same had to apply in reverse if several grounds cast doubt on the patentability of a maintained patent only when considered cumulatively, as was the case here: prior use forming part of the prior art and prior use anticipating the invention. If out of a number of facts having to be considered cumulatively in order to alter the decision just one was sufficiently substantiated, the appeal was inadmissible.

h) Mere repetition of arguments

In T 198/15 the statement setting out the grounds of appeal consisted essentially of word-for-word repetitions of the notice of opposition, supplemented by word for word repetitions of the appellant's written submissions and new novelty attacks based on documents which did not form part of the proceedings before the opposition division. The arguments which were mere repetitions of the ones presented before the opposition division, did not, and could not, provide reasons why the decision under appeal was to be set aside because they were drafted before the decision of the opposition division was issued.

Furthermore, a statement of grounds of appeal that is identical or nearly identical to the notice of opposition can as a rule not be considered to contain arguments as to why the decision under appeal is incorrect (T 2077/11, T 39/12, T 123/15 of 21 December 2016).

i) Objection not raised at first instance

In T 393/15 the appellant had based its statement of grounds of appeal solely on an objection under Art. 83 EPC it had not raised at first instance. During the proceedings before the opposition division, however, features from the description had been added to independent claim 1 of the request ultimately held allowable. The board observed that a request amending a patent by adding features not in the claims as granted was as a rule open in opposition proceedings to objection under Art. 83 EPC (in conjunction with Art. 101(3) EPC), even if the ground for opposition under Art. 100(b) EPC had not been cited (see also T 66/14). Accordingly, the Art. 83 EPC objection raised on appeal did not